

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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VIRGINIA ROSA,

Plaintiff,

-against-

CITY OF NEW YORK; PO RONALD BURKE, Tax No. 933662; individually and in his/her official capacities; Sgt CARLOS MARTINEZ, Tax No. 942131; individually and in his/her official capacities; and NYPD Officers JOHN and JANE DOE 1 through 10, individually and in their official capacities (the names John and Jane Doe being fictitious, as the true names are presently unknown),

Defendants.
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SUMMONS

Jury Trial Demanded

Plaintiff designates New York
County as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
February 27, 2019

Katherine E. Smith, Esq.
LAW OFFICE OF K.E. SMITH
233 Broadway, Ste. 1800
New York, New York 10279
Tel/ Fax: 347-470-3707
ksmith@legalsmithny.com

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

PO Ronald Burke, 933662; PSA 4; 130 Avenue C, New York, NY 10009

Sgt. Carlos Martinez, 942131; PSA 4; 130 Avenue C, New York, NY 10009

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-against-

CITY OF NEW YORK; PO RONALD BURKE, Tax No. 933662; individually and in his/her official capacities; Sgt CARLOS MARTINEZ, Tax No. 942131; individually and in his/her official capacities; and NYPD Officers JOHN and JANE DOE 1 through 10, individually and in their official capacities (the names John and Jane Doe being fictitious, as the true names are presently unknown),

Defendants.

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PLAINTIFF Virginia Rosa, by PLAINTIFF'S attorney, the LAW OFFICE OF KATHERINE E. SMITH, complaining of the defendants, respectfully alleges as follows:

FACTS

1. PLAINTIFF Virginia Rosa, is a Hispanic female and has been at all relevant times a resident of New York County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State

Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. At all times relevant defendants P.O. PO RONALD BURKE, Tax No. 933662; Sgt CARLOS MARTINEZ, Tax No. 942131 and NYPD Defendants John & Jane Doe 1 through 10 ("Doe Defendants") were police officers, detectives or supervisors employed by the NYPD. PLAINTIFF does not know the real names and shield / tax numbers of defendants John & Jane Doe 1 through 10.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

STATEMENT OF FACTS

8. On or about January 16, 2018 at or around 6:00 p.m., PLAINTIFF was lawfully within the vicinity of her home located, at 80 Baruch Drive, New York, New York.

9. Several unidentified New York City Police Officers including defendants BURKE and MARTINEZ, unlawfully entered the home of the PLAINTIFF.

10. The officers entered PLAINTIFF's apartment without her consent, or other lawful justification, despite the fact that they had no reasonable suspicion or other lawful basis to do so.

11. PLAINTIFF asked why the officers had entered her home; Defendants told PLAINTIFF that they were responding to a report of a domestic disturbance.

12. PLAINTIFF told them that they were in the wrong apartment.

13. Defendants exited the apartment, but remained outside and would not leave.

14. Defendants stood in the hallway for an extended period of time, demanding entrance into her home.

15. The Defendant Officers told claimant that they that they would leave if she would provide them with her identification. PLAINTIFF provided her identification but the police still refused to leave.

16. Defendants continued to repeatedly bang and kick PLAINTIFF'S door and pushed out the door's peephole.

17. Despite the fact that defendants lacked probable cause, reasonable suspicion, or exigent circumstances, defendants pushed PLAINTIFF to the ground and placed her into handcuffs.

18. The defendant officers called called an ambulance and falsely informed EMS staff that PLAINTIFF was an Emotionally Disturbed Person (EDP).

19. Based on the officer's false statements, PLAINTIFF and her children were transported to the hospital.

20. Medical staff evaluated PLAINTIFF, concluded that she was not a danger to herself or others, and discharged her.

21. PLAINTIFF's children were also evaluated and released.

22. PLAINTIFF was never formally charged with any criminal offenses in connection with this incident.

23. As a result of defendant's conduct, PLAINTIFF suffers from emotional, mental trauma, mental anguish, shock, fear, pain, bodily injury, and anxiety.

CLAIM ONE
Under N.Y. State and Federal Law
UNREASONABLE FORCE, ASSAULT AND BATTERY

24. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

25. Defendants violated the Fourth and Fourteenth Amendment because they used unreasonable force on PLAINTIFF.

26. Defendants aforementioned actions placed PLAINTIFF in apprehension of imminent harmful and offensive bodily contact.

27. Defendant officers touched PLAINTIFF in a harmful and offensive manner.

28. Defendant officers did so without privilege or consent from PLAINTIFF.

29. As a result of defendant's conduct, PLAINTIFF has suffered physical pain and mental anguish, shock, fright, apprehension, embarrassment, and humiliation.

CLAIM TWO
Under State and Federal Law
FALSE ARREST/IMPRISONMENT

30. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

31. Defendant officers arrested PLAINTIFF in the absence of probable cause.

32. As a result of the aforesaid conduct by defendants, PLAINTIFF was subjected to an an illegal, improper and false arrest by the defendants and cause to be falsely imprisoned, detained and confined. The aforesaid actions by the defendants constituted a deprivation of the plaintiff's rights.

33. As a result of the foregoing false imprisonment, PLAINTIFF'S liberty was restricted for an extended period of time; PLAINTIFF was put in fear for PLAINTIFF's safety; was humiliated and subjected to handcuffing and other physical restraints.

34. PLAINTIFF was conscious of said confinement and did not consent to same.

35. The confinement of PLAINTIFF was without probable cause and was not otherwise privileged.

36. As a result of the aforementioned conduct, PLAINTIFF has suffered physical and mental injury, together with embarrassment, humiliation, shoc, fright and loss of freedom.

CLAIM THREE
Under State and Federal Law
MALICIOUS ABUSE OF PROCESS

37. PLAINTIFF repeats and re-alleges each and every allegation as if fully set forth herein.

38. The individual defendants issued legal process to place PLAINTIFF under arrest.

39. The Municipal Defendants arrested PLAINTIFF in order to obtain collateral objectives outside the legitimate ends of the legal process.

40. The Municipal Defendants acted with intent to do harm to PLAINTIFF without excuse or justification.

41. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained, inter alia, loss of liberty, loss of earnings, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, in addition to the damages hereinbefore alleged.

CLAIM FOUR
Federal Law
DEPRIVATION OF FEDERAL RIGHTS

42. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

43. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the laws of the State of New York.

44. All of the aforementioned acts deprived PLAINTIFF of the rights, privileges and immunities guarantee to citizens of the United States by the Fourth and Fourteenth amendments to the Constitution of the united States of America, and in violation of 42 U.S.C.

45. The acts complained were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

46. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

47. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

48. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

49. Defendants falsely and without probable cause charged PLAINTIFF with violations of the laws of the State of New York.

50. The commencement and continuation of the criminal proceedings against PLAINTIFF was malicious and without probable cause.

51. All charges were terminated in PLAINTIFF's favor.

52. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of PLAINTIFF. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

53. As a direct and proximate result of the misconduct and abuse of authority stated above, PLAINTIFF sustained the damages alleged herein.

CLAIM FIVE
Under Federal Law
FAILURE TO INTERVENE

54. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

55. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

56. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

57. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM SIX
Under State and Federal Law
TRESPASS/UNLAWFUL ENTRY

58. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

59. At the aforesaid time and place, defendants suddenly entered the afore-referenced location without a valid warrant, consent, exigent circumstances, or other lawful justification.

60. Defendants' entry into the location was in violation of the law and constituted a trespass.

61. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM SEVEN
Under Federal Law
DEPRIVATION OF FEDERAL RIGHTS

62. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

63. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

64. All of the aforementioned acts deprived PLAINTIFF of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

65. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

66. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

67. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

CLAIM EIGHT

Under Federal Law

DELIBERATE INDIFFERENCE TO SAFETY/MEDICAL NEEDS

68. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

69. The individual defendants were aware of a risk to PLAINTIFF's safety and a need for medical care and failed to act in deliberate indifference to PLAINTIFF's needs.

70. Accordingly, defendants violated the fourteenth amendment because they acted with deliberate indifference to PLAINTIFF's medical needs and safety.

71. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM NINE
Under State Law
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

72. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

73. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

74. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

75. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

76. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to PLAINTIFF.

77. As a result of the aforementioned conduct, PLAINTIFF suffered severe emotional distress and physical and mental injury together with embarrassment, humiliation, shock, fright and loss of freedom.

CLAIM TEN
Under State Law
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

78. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

79. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

80. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

81. Due to the negligence of the defendants as set forth above, PLAINTIFF suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

CLAIM ELEVEN
Under Federal Law
MUNICIPAL LIABILITY

82. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

83. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

84. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. fabricating evidence in connection with search warrants in order to effectuate otherwise illegal searches and seizures, and,
- v. fabricating evidence in connection with search warrants in order to cover up police misconduct.

85. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the PLAINTIFF.

86. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the PLAINTIFF as alleged herein.

87. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the PLAINTIFF as alleged herein.

88. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the PLAINTIFF's constitutional rights.

89. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the PLAINTIFF's constitutional rights.

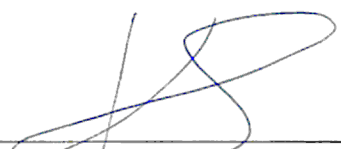
90. The acts complained of deprived the PLAINTIFF of her right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, PLAINTIFF respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: New York, New York
February 27, 2019



Katherine E. Smith
233 Broadway, Ste. 1800
New York, New York 10279
Tel/ Fax: 347-470-3707
ksmith@legalsmithny.com
Attorney for Plaintiff